

2018 SCC OnLine All 357

In the High Court of Allahabad
(BEFORE AMRESHWAR PRATAP SAHI AND SHASHI KANT, JJ.)

M/s. Shree Radhey Ice Factory Petitioner

v.

State of U.P. and 4 Others Respondents

Writ - C No. - 5263 of 2018

Decided on April 16, 2018

Counsel for Petitioner:- A/A1736, Ajay Kumar Patel, R.K. Singh
Gaharwar, Sushant

Counsel for Respondent:- C.S.C., Baleshwar Chaturvedi, S. K. Tr

ORDER

1. Heard learned counsel for the petitioner and Sri. Shrawan Kumar Tripathi for the respondent nos. 2 to 4.

2. The petitioner had come up before this Court raising his grievance with regard to incorrect bills having been sent for realization of consumption of electricity being Writ Petition No. 8164 of 2016. The Court noticed the fact that the petitioner had erroneously approached the permanent Lok Adalat whereas he ought to have raised his grievance in terms of the Electricity Supply Code, 2005. The petitioner filed a review application in the said writ petition but the same was got dismissed as withdrawn on 26.04.2017.

3. The petitioner thereafter in terms of the judgment dated 23.02.2016 approached the Managing Director by moving a representation which is Annexure No. 4 to the writ petition.

4. Learned counsel for the respondent nos. 2, 3 and 4 submits that the said representation in terms of Clause-6.5 of Electricity Supply Code, 2005 ought to have been moved before the Executive Engineer, and therefore, the petitioner erroneously approached the Managing Director of the Corporation.

5. It is then pointed out that the Executive Engineer has already intimated the Secretary Energy, Government of Uttar Pradesh vide his communication dated 21st December, 2017 that the petitioner had not approached the Executive Engineer in spite of having been invited to attend his office.

6. It is thus clear that the petitioner had moved a representation even though to the Higher Authority which ought to have been redirected to the Executive Engineer for consideration. The objections, therefore, have not received the attention of the Competent Authority

may be on account of the wrong approach of the petitioner.

7. The Executive Engineer who has issued the impugned communication has nowhere referred to the said objections and instead has indicated that since the petitioner failed to turn up before him, therefore no action could be taken.

8. In the aforesaid background, we dispose of this writ petition with a direction to the concerned Executive Engineer to proceed to pass an appropriate order in accordance with law, keeping in view of the objections which have been taken by the petitioner in Annexure No. 4 to the writ petition within three weeks from the date of the presentation of the certified copy of this order if he has already not passed an order in terms of 6.5 of the Code.

9. *Disposed of* with the said directions.

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